

PASSED

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 23-004

**Amendments to Title 2, Chapter 10 Section 2-1031.2 of the Chickasaw Nation Code
(Chickasaw Election Commission)**

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature reviews the Election Rules and Regulations on an annual basis and desires to amend Title 2, Chapter 10, Section 2-1031.2 of the Chickasaw Nation Code.

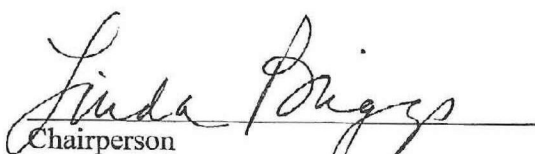
NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 2, Chapter 10, Section 2-1031.2 of the Chickasaw Nation Code (additions and changes of case are shown in red, deletions are stricken through):

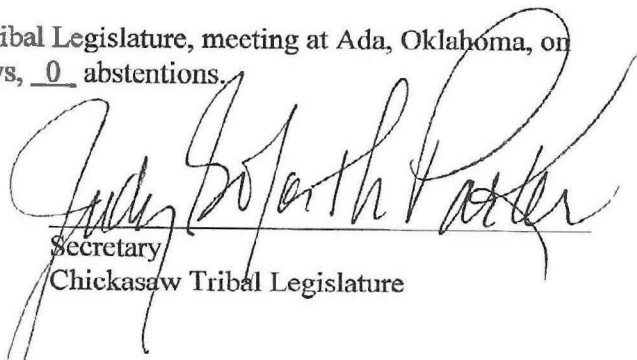
"SECTION 2-1031.2

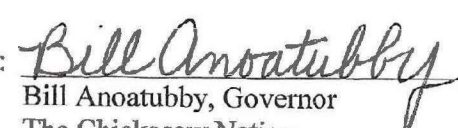
QUALIFICATIONS OF MEMBERS.

Employees of the Chickasaw Nation shall not be eligible for appointment as a member of the Election Commission. No Current elected official of the Chickasaw Nation, nor any person who is related within the third degree (this is defined as Mother, Father, Brother, Sister, Aunt, Uncle, Nephew, Niece, Grandparents, or Grandchildren) by either consanguinity or Affinity to an elected official ~~or an employee of the Chickasaw Nation, including any corporation, agency or other entity which is at least fifty-one percent (51%) owned by the Chickasaw Nation,~~ shall serve on the Election Commission. No Candidate or regular employee of a Candidate for office or person who is related within the third degree by either consanguinity or Affinity to a Candidate for office shall serve on the Election Commission."

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on March 17, 2006, by a vote of 10 ayes, 0 nays, 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: MAR 17 2006

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 23-004
Amendments to Title 2, Chapter 10 Section 2-1031.2 of the Chickasaw Nation Code
(Chickasaw Election Commission)

Explanation: This resolution amends the language regarding the qualifications of Election Commissioners.

Requested By: Steve Woods, Chairman
Election Rules and Regulations Ad Hoc Committee

Presented By: Steve Woods, Chairman
Election Rules and Regulations Ad Hoc Committee